

26VECP00248 26VECP00248

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-25

Motion: PETITION FOR ORDER REINSTATING ITAPOAN, INC. TO ACTIVE STATUS

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Case Number: 26VECP00248 Hearing Date: August 25, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

In re:

ITAPOAN,

INC.,

Petitioner.

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CASE

NO: 26VECP00248

[TENTATIVE]

ORDER RE: PETITION FOR ORDER REINSTATING ITAPOAN, INC. TO ACTIVE STATUS

Dept.

I

HEARING

DATE: August 25, 2026

TIME: 8:30 A.M.

PETITION

FILED: May 21, 2026

TRIAL

DATE: None set.

I.

BACKGROUND

On May 21, 2026, Petitioner Itapoan, Inc. ("Petitioner")

filed the instant Petition for Order Reinstating Itapoan, Inc. to Active

Status. To date, no opposition has been filed.

II.

LEGAL

STANDARDS

Government Code Section 12261, subdivision (a)

provides: "The Secretary of State shall reinstate to active status on its

records, a business entity for which a court finds any of the

following: [¶](1) The factual representations by a shareholder, member,

partner, or other person that are contained in the termination document are

materially false. [¶](2) The submission of the termination document to the

Secretary of State for filing is fraudulent." (Gov. Code, § 12261, subd.

(a).)

"If a court of competent jurisdiction orders

reinstatement of a business entity to active status on any of the grounds

stated in paragraph (1) or (2) of subdivision (a), the order for

reinstatement shall state all of the following: [¶](1) The specific

grounds for reinstatement. [¶](2) That if there is a conflict with the

entity name under subdivision (b) of Section 201, subdivision (b) of Section

5122, subdivision (c) of Section 7122, subdivision (b) of Section 9122,

subdivision (b) of Section 12302, subdivision (d) of Section 15901.08,

subdivision (b) of Section 17701.08 of the Corporations Code, or related

statutes, the reinstatement shall be conditioned upon the business entity

concurrently submitting for filing an amendment to change its name to eliminate

the conflict along with the certified copy of the order required by Section

12263. [¶](3) That the business entity shall be reinstated effective from

the date of the filing of the court order with the Secretary of

State.” (Gov. Code, § 12261, subd. (b).)

“The court order for reinstatement may be obtained

by submitting a petition to the superior

court containing the legal and factual basis for reinstatement or as

part of a civil action for damages or equitable relief. The Secretary

of State shall not be made a party to the proceeding.” (Gov. Code, § 12261,

subd. (c); see also *Holistic Supplements, LLC v. Stark* (2021)

61 Cal.App.5th 530, 557 (Holistic).)

“[T]he statute does not impose any specific pleading requirements when seeking an order as part of a civil case. The statute only imposes a pleading requirement for a stand-alone petition....” (Holistic Supplements, LLC, *supra*, 61 Cal.App.5th 557.) “A court evaluating a stand-alone petition may know nothing about the facts supporting reinstatement, whereas a court handling other claims in a civil case probably will.” (Id.)

III.

DISCUSSION

Petitioner seeks an order reinstating it to active status on the grounds that the Certificate of Dissolution filed with the Secretary of State on April 3, 2026, contained materially false representations. Specifically, Petitioner contends that Eminutes filed the Certificate of Dissolution on the behalf of Wagner Moura, the director of Itapoan, Inc., without the consent and agreement of Mr. Moura who is the sole officer of Itapoan, Inc. (Pet., ¶¶3-4.)

“When a corporation has been completely wound up without court proceedings therefor, a majority of the directors then in office shall sign and verify a certificate of dissolution....” (Corp. Code, § 1905, subd. (a); see also *A B C Brewing Corp. v. C.I.R.* (9th Cir. 1955) 224 F.2d 483, 487

["Only the certificate that the corporation 'has been completely wound up' is 'a formal end of corporate existence'."].)

Here, Petitioner had provided evidence showing that Mr.

Moura is the sole officer and director of Itapoan, Inc. (Easter Decl., ¶¶7, 11,

Ex. C; Schwartz Decl., ¶4.) Furthermore, Petitioner is a client of Eminutes,

who was asked to assist Itapoan, Inc. with surrendering the right to do

business in Pennsylvania by the business manager for Itapoan, Inc. (Easter

Decl., ¶8.) There was a miscommunication between Petitioner's business manager

and Eminutes, thus Eminutes believed that Petitioner also wanted to dissolve in

California as well. (Easter Decl., ¶8; Schwartz Decl., ¶¶4-5.) Consequently,

Eminutes prepared and filed the Certificate of Dissolution at issue in this

case. (Easter Decl., ¶9, Ex. D.) However, Petitioner asserts that Mr. Moura had

no knowledge that the Certificate of Dissolution had been filed and no steps

have been taken to dissolve Itapoan, Inc., which is still operating and growing

(Id., ¶5.)

Accordingly,

the Court finds that Petitioner has demonstrated the filing of the

Certificate of Dissolution made by Eminutes on April 3, 2026, on behalf of

Petitioner contained factual misrepresentations pertaining to

winding up and dissolution Itapoan, Inc. In addition, all documents required by the

code have been submitted.

IV.

CONCLUSION

Based

on the foregoing, Petitioner Itapoan, Inc.'s Petition for Order Reinstating

Itapoan, Inc. to Active Status is GRANTED. Petitioner Itapoan, Inc. shall be

reinstated effective from the date of the filing of this court order with the

Secretary of State.

Petitioner

is to file proof that the court order was filed with the Secretary of State in

accordance with Gov. Code, § 12261, subd. (b) within 10 days of the

order.

Petitioner Itapoan, Inc. to give

notice.

Dated: August

25, 2026

Hon. Karen Moskowitz

Judge

of the Superior Court